

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

FORMUKLEEN, INC., *Complainant*

v.

TOP SHIPPING SYSTEMS, CORP., *Respondent*.

DOCKET NO. 25-08

Served: November 21, 2025

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

**ORDER GRANTING JOINT MOTION FOR PROTECTIVE ORDER, AND GRANTING IN PART
MOTION TO EXTEND DISCOVERY AND CASE DEADLINES**

On November 20, 2025, the parties filed a Joint Status Report (“JSR”), a Joint Motion to Extend Discovery and Case Deadlines (“MTE”), and Complainant and Respondent’s Joint Motion for a Protective Order (“MPO”). I address them below.

A. Motion for Protective Order

The parties requested a protective order, stating that: “[d]iscovery document production will require exchange of materials that include confidential business information, non-party commercial data, bank and payment records, negotiated pricing and duty/fee details, internal communications, and personally identifying information.” (MPO, at 1). I appreciate that discovery in this case will likely require each party to disclose sensitive information. Therefore, I am satisfied that a protective order is required.

In general, I find that the proposed protective order is reasonable. To the extent that the proposed protective order in any way conflicts with the Initial Order or Commission’s Rules, the Initial Order and Commission’s Rules shall apply.

The parties should note that after the initial decision is issued, I may not have authority to rule on issues arising from the proceeding, and that cannot be changed by agreement between the parties.

I also note that the proposed protective order contains some duplication. In particular, there are two paragraphs in the **3. Access and Use** section regarding personal information; the two paragraphs appear to be duplicative. For the sake of clarity, I **ORDER** that the first paragraph regarding personal information be **STRICKEN** as duplicative. The proposed protective order also has two paragraphs regarding the confidential request table in the same section; they are substantively identical except that the second paragraph contains an example of what a table should look like, and requires any experts to agree to the protective order. I

ORDER that the first paragraph regarding confidential request table be **STRICKEN** as duplicative.

Because I find that the parties have established good cause to enter the proposed protective order, the MPO is **GRANTED**, and it is hereby **ORDERED** that the protective order be entered as modified by the above as an order in this proceeding.

B. Motion to Extend Discovery and Case Deadlines

The parties filed a joint motion to extend deadlines. In it, they request that discovery close on April 6, 2026, and that briefing close July 13, 2026. (MTE, at 2). Among other things, the parties indicate that because they did not have a protective order, they conducted no discovery while the Commission was shut down. They also indicate that they have taken the upcoming holiday season into consideration in proposing this schedule. (*See* JSR, at 1; *see also* MTE at 1-2).

The failure to advance this case over the past several weeks is not a valid reason to extend discovery. It is the parties' failure to cooperate that led to a lack of a protective order until now. Although the parties apparently agreed in principle to a proposed protective order, the parties apparently did not come to an agreement about the terms before the Complainant filed a motion for a proposed protective order on September 17, 2025. (Order Requiring Supplemental Motion for Protective Order, at 1). Although I ordered the parties to file, by September 30, 2025, a supplemental joint protective order that they both agreed to, (*id.*), they did not. The parties' failure to cooperate – which they have done repeatedly since this case began – has now had real consequences in delaying the proceeding.¹

Regardless of whether a protective order was entered, the parties were specifically instructed that they could stipulate among themselves to keep discovery materials confidential. (Initial Order, at 7, ¶ 31). Further, the parties were instructed specifically to continue working on their cases while the Commission was shut down. (*See* Notice Regarding Deadlines of October 1, 2025 (“Parties are expected to proceed with their cases to the extent possible, including conducting discovery and serving opposing parties with filings – including motions, briefs, and responses to requests for additional information – by the established deadlines.”)). In other words, the parties could have continued to advance this case, but, again, failed to cooperate.

Regardless of the cause of the delay to this point, I find that the Scheduling Order issued July 23, 2025, is now impractical, and that a revised scheduling order must be issued. Therefore, I **ORDER** that the MTE is **GRANTED IN PART**. But, while I appreciate that the holiday season is upcoming, I am shortening the suggested deadlines because the deadline for the issuance of an initial decision in this matter is June 17, 2026. First, I am shortening the proposed discovery deadlines by two weeks. Second, I am eliminating the need for a joint status report after the close of discovery. Third, I am moving the deadline for the opening brief to where the

¹ It is good that the parties have been able to file three documents jointly on November 20, 2025. I strongly encourage the parties to continue to cooperate on non-dispositive matters – which is required under the rules. (46 C.F.R. § 502.71(a)).

joint status report would have been, and moving the response and reply deadlines up by a corresponding period of time. I will advise the parties if an oral hearing is necessary after reviewing the parties' briefs, which must include all relevant evidence and arguments.

The parties are **ORDERED** to abide by this schedule going forward:

January 6, 2026	Responses to initial discovery requests due
January 12, 2026	Depositions (if any) begin
February 11, 2026	Deadline for submission of additional discovery requests
March 23, 2026	Close of discovery and completion of depositions (if any)
April 13, 2026	Complainant's opening brief, proposed findings of fact, and appendix due
May 13, 2026	Respondent's Opposition Brief, Responses to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix
May 29, 2026	Complainant's Reply Brief and Responses to Proposed Findings of Fact

The parties are reminded that a "scheduling order 'is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.'" (*Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985))). Moreover, "[p]arties cannot control an agency's docket or procedures through agreement among themselves." (*Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983)). The authority of courts to control their dockets is well settled. (*Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998)).

Motions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response.

In light of the lack of cooperation by the parties to date, any future motion for extension of time may not be granted, even if the motion is made jointly, unless the moving party or parties can show extraordinary circumstances.

Parties must follow the instructions in the Initial Order, including the requirements for submitting confidential information. Parties may be required to refile any documents that do not follow the requirements above or in the Initial Order.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to email the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with opposing counsel copied. Word-processing versions should not be submitted to the Office of the Secretary.

Richard C.
Ambrow Jr -S

A red, stylized digital signature is written over the text "Richard C. Ambrow Jr -S".

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Richard C. Ambrow Jr -S
Date: 2025.11.21 11:52:07
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Richard Ambrow
Administrative Law Judge